

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



September 20, 2018

Honorable William Pounders
Judge of the Superior Court
County of Los Angeles
210 West Temple Street
Los Angeles, CA 90012-3210

Re: Barraza, Bryant
CDC No.: F49103
Case No.: BA245638
Date of Sentence: 9/28/2006

Dear Honorable William Pounders:

The purpose of this letter is to provide the court with authority to resentence Bryant Barraza pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Barraza was sentenced in 2006, and was convicted of section 245, subdivision (A)(1), ASSAULT WITH DLY WPN/INSTR. The trial court sentenced inmate Barraza on 9/28/2006. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Barraza's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Barraza's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,

A blue ink signature of Ralph M. Diaz, written in a cursive style.

RALPH M. DIAZ
Secretary (A)

Enclosures:

Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Honorable Daniel J. Buckley, Los Angeles County Presiding Judge
Los Angeles District Attorney
Public Defender

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
[NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED]

CR-290

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: LOS ANGELES			CONFIRMED COPY OF ORIGINAL FILED Los Angeles Superior Court OCT 20 2006 John A. Clarke, Executive Officer/Clerk Deputy		
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: BARRAZA, BRYANT		DOB: 01-04-79			
AKA:		BA245638 ✓ -A			
CII#: A10010775		-B			
BOOKING #: 7665701		☐ NOT PRESENT		ENTERED INTO OBIS	
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT		☐ AMENDED ABSTRACT			
DATE OF HEARING 09-28-06		DEPT. NO. 101		JUDGE WILLIAM POUNDERS	
CLERK A P JORDAN		REPORTER J IANNONE		PROBATION NO. OR PROBATION OFFICER X1676479	
COUNSEL FOR PEOPLE R J SHERWOOD		COUNSEL FOR DEFENDANT R. A. WELBOURN		☒ APPTD.	

1. Defendant was convicted of the commission of the following felonies:

- ☐ Additional counts are listed on attachment
 ____ (number of pages attached)

CNT.	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY			TERM (L, M, U)	CONCURRENT	CONSECUTIVE 1/3 VIOLENT	CONSECUTIVE 1/3 NON-VIOLENT	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (refer to page 2)	654 DAY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA								YRS.	MOS.
3	PC	245(A)(2)	ASSAULT WITH A FIREARM	2000	05-23-06	X			M				X			3	
5	PC	245(A)(1)	ASSAULT WITH DLY WPN/INSTR	2000	05-23-06	X			M		X					1	
6	PC	4535	FURNISH ESCAPE EQUIPMENT	2000	05-23-06	X			M		X						8
					- -												
					- -												
					- -												

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

CNT.	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL
3	12022.5(A)(1)	4							4
5	12022.7(A)	1							1

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL
186.22(B)(1)	10							10
186.22(B)(1)	3,4							3 4
186.22(B)(1)	1							1

4. ☐ Defendant was sentenced pursuant to PC 667 (b)-(i) or PC 1170.12 (two-strikes).

5. INCOMPLETED SENTENCE(S) CONSECUTIVE

6. TOTAL TIME ON ATTACHED PAGES: _____

7. ☒ Additional indeterminate term (see CR-292).

8. TOTAL TIME EXCLUDING COUNTY JAIL TERM: **24**

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.

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PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: BARRAZA, BRYANT			
BA245638	-A	-B	-C
-D			

9. FINANCIAL OBLIGATIONS (including any applicable penalty assessments):

a. Restitution Fine(s):

Case A: \$ _____	per PC 1202.4(b) forthwith per PC 2085.5;	\$ _____	per PC 1202.45 suspended unless parole is revoked.
Case B: \$ _____	per PC 1202.4(b) forthwith per PC 2085.5;	\$ _____	per PC 1202.45 suspended unless parole is revoked.
Case C: \$ _____	per PC 1202.4(b) forthwith per PC 2085.5;	\$ _____	per PC 1202.45 suspended unless parole is revoked.
Case D: \$ _____	per PC 1202.4(b) forthwith per PC 2085.5;	\$ _____	per PC 1202.45 suspended unless parole is revoked.

b. Restitution per PC 1202.4(f):

Case A: \$ _____	☐ Amount to be determined	to ☐ victim(s)*	☐ Restitution Fund
Case B: \$ _____	☐ Amount to be determined	to ☐ victim(s)*	☐ Restitution Fund
Case C: \$ _____	☐ Amount to be determined	to ☐ victim(s)*	☐ Restitution Fund
Case D: \$ _____	☐ Amount to be determined	to ☐ victim(s)*	☐ Restitution Fund

(*List victim name(s) if known and amount breakdown in item 11, below.)

c. Fine(s):

Case A: \$ _____	per PC 1202.5. \$ _____	per VC 23550 or _____	days	☐ county jail	☐ prison in lieu of fine	☐ CC	☐ CS
Case B: \$ _____	per PC 1202.5. \$ _____	per VC 23550 or _____	days	☐ county jail	☐ prison in lieu of fine	☐ CC	☐ CS
Case C: \$ _____	per PC 1202.5. \$ _____	per VC 23550 or _____	days	☐ county jail	☐ prison in lieu of fine	☐ CC	☐ CS
Case D: \$ _____	per PC 1202.5. \$ _____	per VC 23550 or _____	days	☐ county jail	☐ prison in lieu of fine	☐ CC	☐ CS

d. Lab Fee and Drug Program Fee:

Case A: Lab Fee: \$ _____	per HS 11372.5(a) for counts _____	☐ Drug Program Fee of \$150 per HS 11372.7(a).
Case B: Lab Fee: \$ _____	per HS 11372.5(a) for counts _____	☐ Drug Program Fee of \$150 per HS 11372.7(a).
Case C: Lab Fee: \$ _____	per HS 11372.5(a) for counts _____	☐ Drug Program Fee of \$150 per HS 11372.7(a).
Case D: Lab Fee: \$ _____	per HS 11372.5(a) for counts _____	☐ Drug Program Fee of \$150 per HS 11372.7(a).

10. TESTING

a. ☐ AIDS pursuant to PC 1202.1 b. ☐ DNA pursuant to PC 296 c. ☐ other (specify):

11. Other orders (specify):

12. EXECUTION OF SENTENCE IMPOSED

- a. ☒ at initial sentencing hearing.
b. ☐ at resentencing per decision on appeal.
c. ☐ after revocation of probation.
d. ☐ at resentencing per recall of commitment. (PC 1170(d).)
e. ☐ other (specify):

13. CREDIT FOR TIME SERVED

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A	1256	1256	☐ 4019 ☐ 2933.1
B			☐ 4019 ☐ 2933.1
C			☐ 4019 ☐ 2933.1
D			☐ 4019 ☐ 2933.1
Date Sentence Pronounced:		Time Served in State Institution:	
09-28-06		DMH CDC CRC [] [] []	

14. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
To be delivered to ☒ the reception center designated by the director of the California Department of Corrections.
☐ other (specify):

CLERK OF THE COURT

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE CONNIE RODRIGUEZ <i>Connie Rodriguez</i>	DATE 10-20-06
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